CERTIFY RIGHT

BUILDING CERTIFICATION

APPOINTMENT OF PRINCIPAL CERTIFIER & NOTICE OF COMMENCEMENT

Environmental Planning and Assessment (Development Certification and Fire Safety) Regulation 2021, Part 7 Notification requirements for building and subdivision work and fire safety—the Act, s 6.33(1), Section 57 - Notice of appointment of principal certifier

1 APPLICANT DETAILS

GIVEN NAMES: _____

ADDRESS: _____

CONTACT EMAIL: _____

PHONE: _____

2 SITE / LAND OF PROPOSED DEVELOPMENT

LOT/SEC/DP NUMBER: _____

PROPERTY ADDRESS: _____

_____

APPLICATION NO: _____ MUNICIPALITY: _____

3 DETAILS OF PROPOSED DEVELOPMENT

PROPOSED DEVELOPMENT: _____

_____

DA NUMBER: _____ CC NUMBER: _____

CDC NUMBER: _____ BCA CLASSES: _____

BUILDING USE (eg, Residential): _____

DATE APPROVED: _____ COMMENCEMENT DATE: _____

REQUIREMENTS BEFORE COMMENCING

4 PRINCIPAL CONTRACTOR/ OWNER-BUILDER DETAILS

BUILDER/COMPANY NAME: _____ LICENSE NO: _____

ADDRESS: _____

EMAIL: _____ PHONE: _____

OWNER BUILDER NAME: _____ OB PERMIT: _____

HBCF POLICY NO: _____ DATED: _____

5 HAVE THE FOLLOWING BEEN COMPLETED WITH YOUR LOCAL COUNCIL

PAID SECURITY BONDS:	☐	YES	☐	NO	☐	NA	Date: _____
PAID S7.11 OR S7.12 CONTRIBUTIONS:	☐	YES	☐	NO	☐	NA	Date: _____
ROAD OPENING PERMIT:	☐	YES	☐	NO	☐	NA	Date: _____
VEHICLE CROSSING APPROVAL (Section 138):	☐	YES	☐	NO	☐	NA	Date: _____

6 PRINCIPAL CERTIFIER

REGISTERED / PRINCIPAL CERTIFIER - FADI HABBOUCHE OF CERTIFY RIGHT PTY LTD
ADDRESS – PO BOX, GUILDFORD NSW 2161
EMAIL – INFO@CERTIFYRIGHT.COM.AU
CONTACT – 0423 925 514 / 0402 995 983
ACCREDITATION BODY - NSW DEPARTMENT OF FAIR-TRADING ACCREDITATION NUMBER - BDC 2868

OWNER'S CONSENT

- Every owner of the land must sign this application.
- If the owner is a company, this form must be signed by an authorised director of the company.
- If the property is a unit under strata title or a lot in a community title, this form must be signed by the chairperson, the secretary of the Body Corporate, or the appointed managing agent.
- If you are signing on the owner's behalf as the owner's legal representative, you must state the nature of your legal authority and attach documentary evidence (e.g. power of attorney, executor, trustee, company director, etc).
- As the owner(s) of the above property, I/we consent to this application. I/we also consent to Certify Right Pty Ltd staff entering the land to carry out inspections relating to this application.

Also :

- I/We apply for approval to carry out the development of the subject property detailed above within this application.
- I/We declare that all the information in this application and checklist is true and correct to the best of my/our knowledge and hereby indemnify the certifying authority and PCA against any damage and losses as a result of incorrect information submitted.
- I/We understand that building works cannot continue until 2 days after the appointment of the PCA, and it is my/our responsibility to arrange all mandatory critical stage inspections via prior written notice or form of communication.
- I/We understand that if a mandatory critical stage inspection is missed or we do not construct the building according to the Construction Certificate / Complying Development Certificate approval, the PCA will be unable to issue/release an Occupation Certificate.
- I/We hereby appoint Mr FADI HABBOUCHE of Certify Right Pty Ltd as the Principal Certifying Authority (PCA) for the building works identified in this application.
- I/We have read the attached "Information about registered certifiers – building surveyors and building inspectors" from NSW Fair
- Trading and, therefore, understand the information contained within the sheet and understand the role of the building surveyors and building inspectors.
- I/We have read the attached "Contract for Certification Work" and understand our obligations, terms, and conditions stated within the contract itself. By signing this application, we agree to it all.

APPLICANT NAME: _____

ADDRESS: _____

SIGNATURE:

OWNERS NAME: _____

ADDRESS: _____

SIGNATURE: _____ DATE

OWNERS NAME: _____

ADDRESS: _____

SIGNATURE: _____ DATE _____

OWNERS NAME: _____

ADDRESS: _____

SIGNATURE: _____ DATE _____

OWNER'S CONSENT

The Certifier will, on behalf of Certify Right Pty Ltd, perform all work necessary to comply with relevant statutory requirements and to facilitate the timely determination of the application, including:

a.Provide a blank copy of an OC application form to the Client.
b.Conduct an inspection of the development and prepare a record of the inspection.
c.If clause 64 of the EP& A Regulation applies to the development (i.e. Alternative solutions for certain fire safety measures), apply to the Fire Commissioner for a final fire safety report.
d.Obtain a final fire safety certificate or interim fire safety certificate as required by the EP& A Regulation.
e.If the development is a residential flat building to which clauses of the EP&A Regulation applies, obtain a further design verifica tion from a qualified designer in relation to the completed works.
f.Ensure that all BASIX requirements required to be complied with before an OC may be issued have been satisfied, including obtaining any necessary BASIX completion receipt.
g.If clause 64 EP& A Regulation applied to the development (i.e. Where there is an alternative solution relating to fire safety requirements), obtain a further compliance certificate or written report from a fire safety engineer with respect to the completed works as required by the EP& A Regulation.
h.Assess whether the application satisfies the requirements of the EP&A Regulation, including whether any pre-conditions of the development consent or CDC which are required to be met before an OC may be issued, have been met and (where building work has been carried out) whether the work is not inconsistent with the development consent).
i.Determine the application and prepare a notice of the determination.
j.If the application is granted, prepare an OC and issue it to the Client.
k.Forward copies of documents prepared to the consent authority and the council as required by the EP&A Regulation.
l.Not later than two days before any building work or subdivision work commences, the Certifier will:
    1.Notify the consent authority of the Certifier's appointment as PCA
    2.Notify the Client of all inspections that are required to be carried out of the building work or subdivision work.
m.Ascertain, before any building work or subdivision work commences, that a construction certificate or complying development certificate has been issued for the work.
n.Ascertain, before any residential building work commences, that either:
    1.The principal contractor is the holder of a licence under the Home Building Act 1989 and is covered by appropriate insurance,
        or
    2.Where the work is to be carried out by an owner-builder, that an owner-builder permit has been issued under the Home Building Act 1989.
o.The Certifier will either carry out all critical stage inspections of the building work or subdivision work prescribed by the EP& A Regulation or required by the Certifier or ensure that another certifying authority carries out the inspections. However, the Certifier will
    personally carry out the last critical stage inspection that is prescribed for a building.
p.The Certifier will make a record as required by the EP&A Regulation of all inspections that he or she carries out and will ensure that any other certifying authority that has carried out an inspection also prepares a report and supplies it to the Certifier.
q.The Certifier will determine whether any inspection (other than the last critical stage inspection) has been not carried out due to circumstances that were unavoidable and whether the work that would have been inspected was satisfactory.
r.The Certifier will make a record of any such missed inspection as required by the EP&A Regulation and provide a copy to the Client. The Certifier will also notify the principal contractor or owner-builder of the missed inspection as required by the EP&A Regulation.
s.Determine applications for occupation certificates (subject to separate terms under this Agreement) Compliance functions
t.The Certifier will take such steps as he or she considers appropriate to address any of the following matters relating to the development:
    1.Non-compliance with the development consent
    2.The carrying out of work without development consent
    3.An unauthorised use of a building
    4.Breach of a law relating to the carrying out of work or the use of the land
    5.A threat to the safety of a person or a person's property
    6.Any other matter the certifier considers to be in the public interest to address.
u.Without limiting the actions that the Certifier may take, the Certifier may:
    1.Attend the site or nearby properties to inspect any issue of concern relating to the development
    2.Confer with any person in relation to any issues of concern
    3.Cause correspondence to be issued to any person
    4.Refer any matter of concern to such persons or authorities as the certifier considers appropriate, including the consent authority, nsw fair trading or an environmental protection agency
    v.Issue Written Direction Notices under section 6.31 of the EP&A Act
    w.Prepare a "Contract for Certification Work" and forward it to the client that outlines the terms and obligations of both the client and certifying authority.

DATE OF RECEIPT: _____

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